NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH: GUWAHATI

CP(CAA)/05/230/232/GB/2019

Under Section 230/232 of the Companies Act, 2013 read with (compromise, Arrangement and Amalgamations) Rules, 2016

In the matter of:

1) Alco Suppliers Pvt. Ltd. ... Transferee Company

2) Cogzenith Solutions Pvt. Ltd. ... Transferor Company

Coram:

Hon'ble Mr Jinan K.R., Member (Judicial)

For the Petitioners Mr. Raj K. Agarwala, Advocate
Ms Dipamoni Kalita, advocate
Mr. Amitabh Choudhury, Advocate

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ORDER

Date of Order: 26th July 2019

This joint Petition has been filed for sanctioning of proposed Scheme of Amalgamation of Cogzenith Solutions Private Limited (Transferor Company) with Alco Solutions Private Limited (Transferee Company) whereby and where under the entire undertaking of the Transferor Company together with all assets and liabilities relating thereto as going concern are proposed to be transferred to and vested in the "Transferee Company" with appointed date being 1st April, 2018 on the terms and condition fully stated in the Scheme of Amalgamation , a copy whereof is annexed with the Petition , marked as ANNEXURE-A (Pages 30-60).

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2. By an order dated 02.05.2019, rendered in company application C.A.(CAA) No.03/GB/2019, this Tribunal waived the meetings of the equity shareholders and creditors, as applicable, of all the petitioner companies for the purpose of considering and if thought fit for approving with or without modification, the said Scheme of Amalgamation in view of the written consent obtained from the Equity shareholders of the respective companies and consent of the Creditors.

3. In terms of the order of the Tribunal aforementioned, notices have been sent to all the Statutory Authorities. In this regard, an affidavit has been filed by the Petitioners on 11/06/2019 stating that notices were served to all the Statutory Authorities. It has also been stated that no response has yet been received from any of the Statutory Authorities concerned.

4. The petitioner companies have come before this Tribunal with this company petition, i.e., this second motion and have submitted the following documents along with the petition:

1. *Draft Scheme of Amalgamation along with Audited Financial Statements at Annexure A*
2. *An affidavit verifying the petition at page 25*
3. *Certificate of Auditor certifying that the Accounting Treatment proposed in the Draft scheme of Amalgamation is in accordance with the Accounting Standard prescribed under section 133 of the Companies Act 2013.*

5. Heard Mr R.K. Agarwal, learned Advocate for the petitioner companies. In view of absence of any objections from any body and since all the requisite compliance has been fulfilled, the learned counsel prays that the following order be passed:

i) *The date of hearing of the petition filed by the petitioners for sanction of the Scheme of Arrangement/Amalgamation is fixed on 26.09.2019.*

ii) *Notice of hearing of this petition in Form NCLT 3A shall be advertised in an English Daily ('Assam Tribune') and in an Assamese Daily ('Protideen Times') not less than 10 days before the aforesaid date fixed for hearing.*

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6. I have considered the submissions of the learned counsel for the petitioner companies. Since there is no objection from anybody and the fact that all the requisite compliance has been fulfilled, the following order is passed:

ORDER

i) *The date of hearing of the petition filed jointly by the petitioner companies for the sanction of the Scheme is fixed on Thursday 26th September, 2019.*

ii) *Notice of hearing of this petition in form NCLT 3A shall be advertised once in English daily (Assam Tribune) and in Assamese daily (Protideen Times), not less than 10 days before the aforesaid date fixed for hearing.*

iii) *In addition to the above public notice, the petitioner companies shall serve notice of the petition on the following authorities namely,*

(i) *Central government through Regional Director, North-Eastern Region, Ministry of Corporate Affairs,*

(ii) *Registrar of Companies, North - East Region Shillong,*

(iii) *The Income Tax Department of the office having jurisdiction over the respective petitioner companies with PAN numbers of the respective applicants,*

(iv) *Reserve Bank of India (if applicable)*

(v) *The Official Liquidator pursuant to Section 230 (5) of the Companies Act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules 2016 with suitable changes in the notice relating to waiver of meetings and such other relevant and sectorial regulators/authorities, if applicable, which are likely to be affected by the proposed Scheme by sending the same by hand delivery through special messenger or by registered post or speed post within 7 days from the date of this order for filing their representations, if any, on the petition.*

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(vi) *The notice shall specify that representations, if any, should be filed before this Tribunal within 30 days of date of receipt of the notice with a copy of such representations being sent simultaneously to the petitioners and/or their Authorized Representatives. If no such representation is received by the Tribunal within the said period, it shall be presumed that such authorities have no representations to make on the Scheme of Arrangement/Amalgamation.*

vii) *The petitioner companies shall also send notice through e-mail and file copies of e-mail along with affidavit. Notice shall specify that representation, if any, should be filed before this Tribunal within 30 days of the date of receipt of notice.*

vii) *All the petitioner companies, at least 7 days before the date of hearing of the petition, shall file affidavit of service in relation to paper publication as well as service of notice on the authorities specified above including sectorial regulators.*

7. The petition, being CP(CAA)/05/230/232/GB/2019 is directed to be listed for further hearing on 26.09.2019.

8. There shall be no order as to costs.

9. Urgent certified copies of this order, if applied for, be supplied to the parties upon compliance of all requisite formalities.

Sd/-

Member (Judicial)
National Company Law Tribunal
Guwahati Bench, Guwahati.

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